

STATE OF NEW YORK

5442--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 14, 2025

Introduced by M. of A. MAMDANI, FORREST, LEVENBERG, SHRESTHA, K. BROWN, VALDEZ, McDONOUGH -- read once and referred to the Committee on Energy -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public service law, in relation to enacting the "rate hike notice act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "rate hike notice act".

3 § 2. Subdivision 12 of section 66 of the public service law is amended
4 by adding a new paragraph (m) to read as follows:

5 (m) Within one business day of the publication of the information
6 required pursuant to paragraph (l) of this subdivision, the commission
7 shall require each utility to send electronic notice of a proposed rate
8 increase via text to all customers for whom such utility contacts
9 through text. The text shall inform such customer that such utility is
10 proposing a rate increase in the customer's service area. Such text
11 shall contain the following:

12 (i) the name of this act, "the rate hike notice act";

13 (ii) the name of the utility proposing a rate increase;

14 (iii) the percentage increase to electricity and gas rates for the
15 typical residential customer;

16 (iv) the percentage increase to electricity and gas rates for the
17 typical commercial customer; and

18 (v) instructions for where ratepayers can find additional information
19 pertaining to the rate case. Further, within one business day of the
20 publication of the information required pursuant to paragraph (l) of
21 this subdivision, the commission shall also require each utility to send
22 electronic notice of a proposed rate increase via email to all customers
23 for whom such utility contacts through email and such email notice shall

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD04975-05-5

1 include information identical to the information provided on the commis-
2 sion's website pursuant to paragraph (l) of this subdivision. In addi-
3 tion, each utility shall include a notice of a proposed rate increase in
4 each customer's next monthly bill statement and such notice in the
5 monthly billing statement shall consist of a separate page which shall
6 include information identical to the information provided on the commis-
7 sion's website pursuant to paragraph (l) of this subdivision.

8 § 3. This act shall take effect on the sixtieth day after it shall
9 have become a law. Effective immediately, the addition, amendment and/or
10 repeal of any rule or regulation necessary for the implementation of
11 this act on its effective date are authorized to be made and completed
12 on or before such effective date.